

Glasgow Corporation Order Confirmation Act, 1960

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CHAPTER xx

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936 relating to
Glasgow Corporation. [29th July 1960.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936 and it is requisite that the said
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Glasgow Corporation Order
Confirmation Act 1960. Short title.

SCHEDULE

GLASGOW CORPORATION

Provisional Order to authorise the Corporation of the city of Glasgow to acquire land and construct a new sewer; to authorise the said Corporation to borrow further moneys for the purposes of their tramway undertaking; to enact provisions for facilitating the recovery by the said Corporation of expenditure incurred by them in the demolition of property condemned under the Housing (Scotland) Act 1950 and for other purposes.

Whereas by the Glasgow Corporation Sewage Order 1935 (hereinafter referred to as "the Order of 1935") the various Acts and Orders relating to the sewage undertaking of the Corporation of the city of Glasgow (hereinafter referred to as "the Corporation" and "the city" respectively) were with certain amendments and additions consolidated into one Order and by that Order the Corporation were empowered to construct additional sewers and other works and provision was made for the interception treatment and disposal by the Corporation of the sewage of the city of the burghs of Rutherglen and Clydebank and of certain portions of the counties of Dunbarton Lanark and Renfrew:

And whereas by the Glasgow Corporation Sewage Order 1950 and by the Glasgow Corporation Order 1953 the Corporation were authorised to acquire lands and to construct additional sewers and further powers were conferred upon the Corporation in relation to their sewage undertaking:

And whereas it is expedient to authorise the Corporation to acquire lands and to construct the sewer described in this Order being an extension of sewer No. 1 authorised by the Order of 1935:

And whereas it is expedient that the Corporation should be authorised to borrow further moneys for the purposes of the Glasgow Tramways Acts 1905 to 1958:

And whereas it is expedient with a view to making better provision for the recovery by the Corporation of expenditure incurred by them on the demolition of property condemned under the Housing (Scotland) Act 1950 and subsequently demolished by the Corporation in pursuance of demolition orders made under that Act that the provisions contained in this Order should be enacted:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas estimates have been prepared by the Corporation in relation to the following purposes and such estimates are as follows:—

For the purchase of lands and servitudes for the purposes of the sewer authorised by this Order ..	£200
For the construction of the said sewer	£135,000

And whereas the work included in such estimates is a permanent work and it is expedient that the cost thereof should be spread over a term of years:

And whereas a plan and section showing the lines and levels of the sewer authorised by this Order and also a book of reference to the said plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the sheriff clerk of the county of Lanark and with the town clerk of the city and such plan section and book of reference are hereinafter respectively referred to as the deposited plan section and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I PRELIMINARY

1. This Order may be cited as the Glasgow Corporation Order 1960. Short title and citations.

This Order and the Glasgow Sewage Acts 1935 to 1959 may be cited together as the Glasgow Sewage Acts 1935 to 1960.

This Order and the Glasgow Tramways Acts 1905 to 1958 may be cited together as the Glasgow Tramways Acts 1905 to 1960.

This Order shall be included among the Acts and Orders which may be cited together as the Glasgow Corporation Acts 1855 to 1960.

2.—(1) The following words and expressions in this Order have interpretation. unless there be something in the subject or context repugnant to such construction the meanings hereby assigned to them (that is to say):—

“ city ” means the city and royal burgh of Glasgow;

“ Corporation ” means the Corporation of the city of Glasgow;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“ Order of 1935 ” means the Glasgow Corporation Sewage Order 1935;

“ Order of 1950 ” means the Glasgow Corporation Sewage Order 1950;

“ sewage undertaking ” has the same meaning as in the Order of 1935;

“ Tramways Acts ” means the Glasgow Tramways Acts 1905 to 1958.

(2) Any reference in this Order or in any enactment incorporated with or applied for the purposes of this Order to any other enactment shall except so far as the context otherwise requires be construed as a reference to that enactment as amended by or under any other enactment including this Order.

PART I
—*cont.*
**Incorporation
of Acts.**

3. The following Acts so far as they are applicable to the purposes of and are not inconsistent with this Order are hereby (except where expressly varied by this Order) incorporated with this Order:—

The Lands Clauses Acts (except section 120 of the Lands Clauses Consolidation (Scotland) Act 1845);

The Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and in that Act where applied to this Order the expressions “the promoters of the undertaking” and “the company” mean the Corporation and the expressions “the railway” and “the undertaking” mean the sewer authorised by this Order;

and this Order shall be deemed to be a special Act within the meaning of those Acts.

PART II
LANDS

**Power to
acquire lands.**

4. Subject to the provisions of this Order the Corporation may enter upon take and use all or any of the lands within the limits of deviation delineated on the deposited plan and described in the deposited book of reference which they may require for the purposes of the sewer authorised by this Order.

**Period for
compulsory
purchase.**

5. The powers of the Corporation for the compulsory purchase of lands under this Order shall cease on the thirty-first day of December nineteen hundred and sixty-three.

**Correction of
errors in
deposited plan
and book of
reference.**

6.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to the sheriff of Lanarkshire for the correction thereof.

(2) If on any such application it appears to the said sheriff that the misstatement or wrong description arose from mistake he shall certify the fact accordingly and shall in his certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the Office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office House of Commons and with the sheriff clerk of Lanarkshire and with the town clerk of the city and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

**Application of
provisions of
Order of 1950 to
acquisition of
lands.**

7. The following provisions of the Order of 1950 shall extend and apply with respect to the acquisition by the Corporation of the lands which the Corporation are by this Order authorised to enter upon

take and use to the same extent as if the said provisions were with all necessary modifications re-enacted in this Order (that is to say):—

PART II
—cont.

Section 7 (Servitudes etc. by agreement);

Section 10 (As to private rights of way over lands taken compulsorily);

Section 11 (Power to enter upon property for survey and valuation):

Provided that not less than seven days' notice shall be given before the first entry under the powers of the said section and not less than twenty-four hours in the case of any entry thereafter;

Section 12 (Further powers of entry);

Section 13 (Power to acquire servitudes only);

Section 14 (Power to enter on lands for construction of sewers);

Section 15 (Power to purchase cellars etc.);

Section 16 (Compensation for damage);

Section 17 (Underpinning or otherwise strengthening houses).

8. In settling any question of disputed purchase money or compensation payable under this Order by the Corporation the arbiter shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of October nineteen hundred and fifty-nine if in the opinion of such arbiter the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing purchase money or compensation under this Order.

Compensation
in case of
recently altered
buildings.

PART III

CONSTRUCTION OF SEWER ETC.

9. Subject to the provisions of this Order the Corporation may construct and maintain in the lines and according to the levels shown on the deposited plan and section the sewer hereinafter in this section described together with all necessary and proper appliances works and conveniences incidental or subsidiary thereto (that is to say):—

Power to
construct sewer.

A sewer (Milton sewer) wholly in the city and parish of Glasgow commencing by a junction with the Sewer Work No. 1 authorised by the Order of 1935 in a footpath at a point on the National Grid as indicated on the Ordnance Survey Plan NS 5869 scale 25.344 inches to one mile Edition of 1955 Surveyed or Revised in 1950 on which plan the Grid reference is 5868/6948 and terminating in a playing field at a point on the National Grid as indicated on the Ordnance Survey Plan NS 5969 scale 25.344 inches to one mile Edition of 1954 Surveyed or Revised in 1953 on which plan the Grid reference is 5997/6902.

10. In the construction of the sewer authorised by this Order the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plan and vertically

Power to
deviate.

PART III
—cont.

Certain
provisions of
Order of 1935 to
apply to sewer.

from the levels shown on the deposited section to any extent not exceeding three feet upwards and to any extent downwards.

11.—(1) The following provisions of the Order of 1935 shall with all necessary modifications extend and apply to and in respect of the sewer authorised by this Order in the same way and manner and to the same extent as they extend and apply to and in respect of the sewers authorised by the Order of 1935 and the Order of 1935 shall be read and construed accordingly:—

The provisions of the Order of 1935 hereinbefore referred to are—

Section 15 (Hours between which works not to be carried on);

Section 18 (Power to alter roads &c. temporarily);

Section 30 (Sewers and drains to be connected with works);

Section 31 (Sewage may be discharged into rivers in certain events);

Section 33 (Construction of future sewers);

Section 34 (Junctions to be made by Corporation);

Section 35 (Injurious matter not to be allowed to pass into sewers).

(2) Section 32 (Sewage not to be discharged into rivers or their tributaries) of the Order of 1935 shall be read and have effect as if the reference therein to section 31 of the Order of 1935 were a reference to that section as construed in accordance with subsection (1) of this section.

Saving for
Rivers (Preven-
tion of Pollu-
tion) (Scotland)
Act 1951.

12. Nothing in section 31 (Sewage may be discharged into rivers in certain events) of the Order of 1935 as applied to the sewer authorised by this Order shall derogate from the provisions of section 28 of the Rivers (Prevention of Pollution) (Scotland) Act 1951.

For protection
of South of
Scotland
Electricity
Board.

13. Section 23 (For protection of South-West Scotland Electricity Board) of the Order of 1950 shall for the protection of the South of Scotland Electricity Board extend and apply to and in respect of the sewer authorised by this Order in the same way and to the same effect as if the said sewer had been included among the works authorised by the Order of 1950.

Sewer to form
part of sewage
undertaking.

14. The sewer to be constructed under the authority of this Order shall form part of the sewage undertaking.

PART IV

BORROWING FOR TRAMWAY UNDERTAKING

Borrowing for
tramway
undertaking.

15.—(1) The Corporation may borrow for the purposes of the Tramways Acts any sum of money not exceeding five million pounds in addition to (a) the sum of sixteen million one hundred and twenty-one thousand nine hundred and eighty-five pounds authorised to be borrowed by the Tramways Acts and (b) the sum of seventy-one thousand two hundred and eighty-one pounds nine shillings and nine-pence authorised to be borrowed by the Govan Burgh (Tramways) Act 1893 (the tramways belonging to the former burgh of Govan having been vested in the Corporation by the Glasgow Boundaries Act 1912) and they shall pay off all moneys so borrowed within the period of thirty years from the date of borrowing.

(2) If after having borrowed the said sum hereby authorised or any part thereof the Corporation pay off the same by other means than by sinking fund they may reborrow the same.

PART IV
—cont.

(3) The amount borrowed by the Corporation for the purposes of the undertaking authorised by the Tramways Acts whether in exercise of their powers under the Tramways Acts and this Order or at common law shall not exceed in amount the total sum they are authorised to borrow by the Tramways Acts and this Order.

16. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946 or of section 259 of the Local Government (Scotland) Act 1947.

Saving for
control on
borrowing.

PART V

MISCELLANEOUS

17. Where pursuant to section 14 of the Housing (Scotland) Act 1950 the owner of any house with respect to which a demolition order under Part II of the said Act has become operative fails to demolish the said house and the said house is demolished by the Corporation the amount of the expenses recoverable by the Corporation in accordance with subsection (2) of section 14 of the said Act in carrying out such demolition so far as not paid by the owner of the said house shall form a real and preferable lien and burden on the land comprising the site of the said house and of any land held in connection therewith and may be recovered in any method competent from such land as well as from such owner by personal action or diligence. Provided always that purchasers lenders and others acquiring right to such land or any part thereof for value without notice of such lien and burden shall not be affected thereby unless notice thereof with warrant of registration has been registered in the division of the general register of sasines for the county of the barony and regality of Glasgow and the keeper of the said register shall be bound to receive and register any notice under this section signed by the town clerk of the city or by any law agent on behalf of the Corporation.

Security for
expenditure of
Corporation on
demolition of
houses under
Housing
(Scotland) Act
1950.

18. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act.

Saving for town
and country
planning.

19. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any land buildings or works vested in or occupied by the Crown or any department of Her Majesty's Government except to such extent as Her Majesty or such department may voluntarily agree and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any land heritages subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the

Crown rights.

PART V
—cont.

management of the Crown Estate Commissioners without the consent in writing of the Crown Estate Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Costs of Order.

20. The costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and shall be allocated amongst the several undertakings and services of the Corporation in such proportions as the Corporation may deem expedient.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 19.
Railways Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 20.
Govan Burgh Tramways Act 1893	56 & 57 Vict. c. lxix.
Glasgow Boundaries Act 1912	2 & 3 Geo. 5 c. xcv.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & Edw. 8 c. 52.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Local Government (Scotland) Act 1947	10 & 11 Geo. 6 c. 43.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6 c. 53.
Housing (Scotland) Act 1950	14 Geo. 6 c. 34.
Rivers (Prevention of Pollution) (Scotland) Act 1951	14 & 15 Geo. 6 c. 66.

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